3. It serves all or any of the needs of a state on the request of the state governor and with the approval of the president of India.

4. It is consulted on the following matters and it advises:

    1. On all matters relating to methods of recruitment to civil services and for civil posts

    2. On the principles to be followed in making appointments to civil services and posts and in making promotions and transfers from one service to another and on the suitability of candidates for such appointments, promotions and transfers

    3. On all disciplinary matters affecting a person serving under the Government of India in a civil capacity. This includes memorials and petitions relating to such matters

    4. On any claim for reimbursement of legal expenses incurred by a civil servant in defending legal proceedings instituted against him/her in respect of acts done in the execution of his/her official duties

    5. On any claim for the award of a pension in respect of injuries sustained by a civil servant while serving under the Government of India and any question as to the amount of any such award

    6. On any other matter referred to it by the President

The Supreme Court has held that if the government fails to consult the UPSC in the matters (mentioned above), the aggrieved public servant has no remedy in a court. In other words, the court held that any irregularity in consultation with the UPSC or acting without consultation does not invalidate the decision of the government. Thus, the provision is directory and not mandatory. Similarly, the court held that a selection by the UPSC does not confer any right to the post upon the candidate. However, the government is to act fairly and without arbitrariness or mala fides.

The additional functions relating to the services of the Union can be conferred on the UPSC by the Parliament. The Parliament can also place the personnel system of any authority, corporate body or public institution within the jurisdiction of the UPSC. Hence, the jurisdiction of the UPSC can be extended by an act made by the Parliament.

The UPSC presents, annually, to the President a report on its performance. The President places this report before both the Houses of Parliament, along with a memorandum explaining the cases where the advice of the Commission was not accepted and the reasons for such non-acceptance.

LIMITATIONS

The following matters are kept outside the functional jurisdiction of the UPSC. In other words, the UPSC is not consulted on the following matters:

1. While making reservations of appointments or posts in favour of any backward class of citizens.

2. While taking into consideration the claims of scheduled castes and scheduled tribes in making appointments to services and posts.